

Smt. Neha Sood vs Deepak Dubasi on 23 February, 2022

Author: Rajani Dubey

Bench: Rajani Dubey

NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

TPC No.53 of 2021

Smt. Neha Sood, W/o Deepak Dubasi, Aged About 27 Years, R/o
Near Airtel Exchange, Vijay Bhawan, Sarju Bagicha, Bilaspur, Tahsil
and District Bilaspur, Chhattisgarh

---- Petitioner

Versus

Deepak Dubasi, S/o D. Prabhakar Rao, Aged About 28 Years, R/o
Plot No.14. Near Deep Apartment, Pragati Nagar, Risali, Bhilai, Tahsil
and District Durg, Chhattisgarh

---- Respondent

For Petitioner
For Respondent

Mr. J. A. Lohani, Advocate
Mr. Shreyankar Nandy, Advocate

Hon'ble Smt. Justice Rajani Dubey

Order on Board

23/02/2022

1. This petition under Section 24 of the Code of Civil Procedure, 1908 has been preferred by the petitioner wife seeking transfer of Civil Suit No.845/2019 (Deepak Dubasi vs Smt. Neha Sood) pending before the Principal Judge, Family Court, Durg, District Durg to the Family Court, Bilaspur, District Bilaspur.

2. Brief facts of the case are that the petitioner and respondent were in love affair and they both went to United States of America for their further studies, where they performed marriage on 11.07.2016 and subsequently with the consent of their family members, they again performed marriage in India on 03.12.2017 at Jagannath Mangalam, Bilaspur (C.G.). After some time, differences started between them and on account of differences, the respondent husband filed

application under Section 13 (B) of the Hindu Marriage Act, 1955 before the Family Court, Durg. Presently, the respondent husband is residing at Durg, whereas the petitioner wife is residing at Bilaspur with her parents and being a lady, she has to attend the court proceedings regularly at Durg, which is approx 150 kms from Bilaspur, therefore, the present petition has been filed.

3. Learned counsel for the petitioner submits that the petitioner wife is residing at Bilaspur (C.G.), whereas the proceedings of the application under Section 13 (B) of the Hindu Marriage Act, 1955 are going on at Family Court, Durg, District Durg, for which the petitioner wife has to attend the court proceedings alone and condition of her father is also not good due to ailment. The distance between Durg to Bilaspur is approx 150 kms and the petitioner, being a lady, it is very difficult for her to travel alone 150 kms to attend the court proceedings at Family Court, Durg. He further submits that it is settled position of law that the convenience of wife is relevant factor over the convenience of the husband. Therefore, the Civil Suit No.845/2019 pending before the Family Court, Durg may kindly be transferred to the Family Court, Bilaspur. Learned counsel has placed reliance on the judgment rendered by the Supreme Court in the matter of Krishna Veni Nagam vs Harish Nagam¹.

4. On the other hand, learned counsel for respondent, opposes the petition.

5. I have heard learned counsel for the parties and perused the material available on record.

6. Admittedly, the distance between Durg to Bilaspur is approx 150 kms.

The petitioner, being a lady, it would be highly inconvenient for her to 1 (2017) 4 SCC 150 travel alone from Bilaspur to Durg and vice versa especially in the evening after attending the court proceedings

7. The Supreme Court in the matter of Rajani Kishore Pardeshi Vs. Kishor Babulal Pardeshi² has observed that the convenience of wife is to be preferred over the convenience of the husband. Further, the Supreme Court in the matter of Sumita Singh Vs. Kumar Sanjay and another³ has observed that if husband files suit against wife, then convenience of wife must be looked into.

8. Thus, having ascertained the legal position and keeping in view the law laid down in the aforesaid cases, and particularly keeping in view that distance between Durg to Bilaspur is approx 150 kms and the petitioner wife has to attend the court proceedings alone, the instant transfer petition deserves to be and is hereby allowed. It is directed that the Civil Suit No.845/2019 (Deepak Dubasi Vs. Smt. Neha Sood) filed by respondent husband under Section 13 (B) of the Hindu Marriage Act, 1955 before the Principal Judge, Family Court, Durg (C.G.) is hereby withdrawn from the said Court and the same is transferred to the Family Court, Bilaspur, District Bilaspur for hearing and disposal in accordance with law. The Principal Judge, Family Court, Durg is directed to transmit the record of the above said case to the Principal Judge, Family Court, Bilaspur, District Bilaspur (C.G.).

9. Both the parties shall appear before the Family Court, Raipur on 27.04.2022. No order as to costs
Sd/-

Rajani Dubey Judge Niral 2 (2005) 12 SCC 23 3 (2001) 10 SCC 41